

		Demurrer to Plaintiff's First amended Complaint is CONTINUED to June 29, 2026, at 1:45 p.m. in Department C15.
3	Funding Capital Corp LLC vs. Garfield Langmuir – Logan 2024-01437501	1. Motion for Leave to File Amended Complaint 2. Case Management Conference Continued to 07/13/2026, 1;45pm, Department C15
4	Kirshner vs. 3 Day Blinds LLC 2025-01527621	1. Demurrer to Complaint 2. Motion to Strike <u>Demurrer</u> Defendant 3 Day Blinds, LLC's demurs to the Complaint. Balsam v. Trancos, Inc. (2012) 203 Cal.App.4th 1083 and Hypertouch, Inc. v. ValueClick, Inc. (2011) 192 Cal.App.4th 805 provide an in depth discussion of California Business & Professions Code § 17529.5 and the CAN-SPAM Act: "This Act supersedes any statute, regulation, or rule of a State or political subdivision of a State that expressly regulates the use of electronic mail to send commercial messages, except to the extent that any such statute, regulation, or rule prohibits falsity or deception in any portion of a commercial electronic mail message or information attached thereto." (15 U.S.C., § 7707, subd. (b)(1) [CAN-SPAM Act].) Thus, the CAN-SPAM Act preempts state law regarding commercial email advertising except where there is false or deceptive messaging. Here, Plaintiff alleges the email's header was false or deceptive. (Compl., ¶ 16(a).) Thus, Plaintiff's claims are not preempted. Defendant next argues the allegations are insufficient to constitute falsity or deception pursuant to California Business & Professions Code § 17529.5. Defendant claims there is no requirement the "From" field identify the sender's domain. A single email with a traceable domain name which does not identify the sender or the advertiser, even if the domain name is " 'random,' 'varied,'